BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1090 S Milpitas Blvd
Unit #304, Milpitas, CA 95035
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff(s), vs. STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONZALEZ (#023295); OFFICER MELANO (#023054) Defendant(s).	Case No. 2:25-cv-01460-DC-CSK **NOTICE OF SUPPLEMENTAL AUTHORITY** *(Plaintiff's Objections to F&R Pending, ECF No. 24)*

Plaintiff Brendan Ngehsi Newanforbi, proceeding pro se, respectfully files this Notice of Supplemental Authority to bring to the Court's attention a decision issued after the filing of Plaintiff's Objections to the Magistrate Judge's Findings and Recommendations (ECF No. 24) that bears directly on the pending objections.

THE SUPPLEMENTAL AUTHORITY

On June 29, 2026, the Honorable Ajay S. Krishnan, United States Magistrate Judge for the Northern District of California, issued an Order Re Motion to Proceed In Forma Pauperis in *Newanforbi v. Serrato*, Case No. 4:26-cv-05953-ASK (N.D. Cal.) (the "Serrato Order"). A true and correct copy of the Serrato Order is attached hereto as Exhibit A.

In the Serrato Order, Judge Krishnan (1) granted Plaintiff's application to proceed in forma pauperis, (2) screened the complaint pursuant to 28 U.S.C. section 1915(e), and (3) concluded that the operative complaint "is sufficient" to proceed past the section 1915 screening stage. The Court ordered the Clerk to issue summons and directed service of process by the United States Marshal.

RELEVANCE TO THE PENDING OBJECTIONS

The Serrato Order is directly relevant to this Court's de novo review of the Findings and Recommendations for the following reasons:

First, the Serrato Order arises from the same November 1, 2024 incident at issue in this case. Judge Krishnan evaluated the same core factual allegations that underlie this action -- the dashcam contradictions of the sworn CHP report, the fabrication of material statements regarding an odor of alcohol and slurred speech, the involuntary blood draw procured by those fabrications, and the Penal Code section 851.6 detention certificate reclassifying the arrest as a detention with insufficient grounds for a criminal complaint.

Second, a coordinate Article III court has now concluded, on a substantially overlapping factual record, that Plaintiff's allegations state a sufficient claim to survive section 1915 screening. The Findings and Recommendations in this case reached the opposite conclusion, characterizing the complaint as presenting no "non-frivolous claim." The Serrato Order demonstrates that, at a minimum, the claims have "an arguable basis . . . in law or in fact" within the meaning of *Neitzke v. Williams*, 490 U.S. 319, 325 (1989).

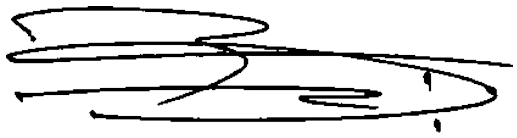
Third, the Serrato Order undermines the Findings and Recommendations' qualified-immunity ruling. Judge Krishnan's determination that the complaint is sufficient necessarily reflects a finding that the underlying constitutional claims are plausible -- a

conclusion inconsistent with resolving qualified immunity against Plaintiff at the screening stage on the same factual record.

Plaintiff does not contend that the Serrato Order is binding on this Court. Plaintiff respectfully submits, however, that a coordinate federal court's assessment of the same factual allegations is persuasive authority that weighs against adoption of the Findings and Recommendations and supports the relief requested in Plaintiff's Objections (ECF No. 24).

Dated: July 7, 2026

Respectfully submitted,



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